PROJECT DUE DILIGENCE & LEGAL AUDIT

MAHARERA: P52100049327

REGISTERED & ACTIVE

Comprehensive Independent Verification & Risk Evaluation Report

Audit Date: September 2026

Project: **Kaleidoscope-R4-MISTY GREENS** (Misty Greens Villa Plots)

⚖️ Legal & Title Risk

MODERATE - HIGH

4 court litigations on land + pending counter-claim & probate dispute.

🏦 Financial Encumbrance

ACTIVE MORTGAGE

Township land mortgaged to Vistra ITCL (India) Ltd. Requires unit-specific NOC.

📑 RERA Compliance

CRITICAL DEFICIENCY

Agreement for Sale missing on MahaRERA; Layout Blueprint uploaded instead.

1. PROJECT PROFILE & MASTER DATA

Project Name	Kaleidoscope-R4-MISTY GREENS	**Marketing Name**	Misty Greens (Paranjape Schemes)
MahaRERA Reg. No.	**P52100049327**	**Registration Date**	07/02/2023
Proposed Completion	**01/01/2028**	**Project Status**	Certificate Signed / Ongoing
Promoter Company	Kaleidoscope Developers Pvt. Ltd. (KDPL)	**Key Director**	Shrikant Purushottam Paranjape
Project Location	Sector R4, Village Bhugaon, Tal. Mulshi, Dist. Pune - 412115	**Township Scheme**	Kaleidoscope Integrated Township (Forest Trails)
Total Project Area	**76,868.70 sq. meters** (~19 Acres)	**Total Township Area**	4,19,034.00 sq. meters (140+ Acres)
Total Units	**180 Bungalow Plots** (NA Plotted)	**Units Sold**	**138 Plots Sold** (~77% Booked)
Sanctioning Authority	PMRDA (Commencement Cert: BMU/CR No. 864/21-22)	**Lead Lender**	Vistra ITCL (India) Limited (Mortgagee)

2. COMPREHENSIVE PROS & CONS ANALYSIS

✅ Project Strengths (PROS)

Established Brand & Execution Track Record: Backed by Paranjape Schemes (Construction) Ltd, a 35+ year legacy developer in Pune with delivered township developments (e.g., Forest Trails, Blue Ridge).

Formal Town Planning & PMRDA Approvals: Approved under the Maharashtra Special Township Policy with statutory layout clearances from Pune Metropolitan Region Development Authority (PMRDA).

Scenic Location & High Capital Appreciation Potential: Situated in Bhugaon along Paud Road, near Chandani Chowk and Kothrud, offering natural hill-slope landscapes with easy connectivity to Hinjewadi IT Park and Pune West.

Gated Infrastructure & Integrated Township: Access to township facilities including planned arterial roads, power substations, underground sewage lines, and water treatment infrastructure.

High Sales Velocity & Committed Buyer Base: 138 out of 180 plots (~77%) have already been sold, demonstrating market demand and active buyer investment.

No Prohibitory or Stop-Work Orders: As of audit date, no injunction or stay order has been granted by any court restraining construction or development activity.

⚠️ Critical Red Flags & Risks (CONS)

Critical **Statutory Agreement Missing on MahaRERA:** The promoter uploaded a duplicate layout blueprint instead of the mandatory Model Agreement for Sale (Type 10), preventing pre-booking legal transparency.

High **Active Title Litigations on Land (SCS 256/2013):** Original ancestral land owners (Shedge family) filed a suit challenging earlier sale deeds and asserting title via a disputed Will.

High **Substantive Pending Counter-Claim (RCS 1324/2007):** Despite the original plaintiff withdrawing her suit, co-defendants have filed a subsisting counter-claim under Order VIII Rule 6A CPC.

Medium **Large Institutional Mortgage (Vistra ITCL):** The land carries an active registered financial mortgage. Failure to secure an unconditional, plot-specific release will cloud title.

Medium **Township Common Facility Retention Risk:** Shared amenities (clubhouses, commercial zones) are governed under the master township umbrella and may not be conveyed to the R4 society.

Medium **Extreme Disclaimers in Legal Title Report:** The certifying advocate explicitly stated he only examined photocopies, did not verify original deeds or signatures, and conducted no site survey.

3. COMPLETE LITIGATION & COURT CASE AUDIT

The promoter declared 4 active court litigations directly in the project RERA registration. Below is the granular analysis of each suit from court records and the title clearance dossier:

Case Number	Court & Jurisdiction	Parties Involved	Subject Matter & Relief Sought	Injunction / Risk
Special Civil Suit 256/2013	Civil Judge Senior Division (CJSD), Pune	**Plaintiffs:** Hiraman Parvati Shedge & Ors. **Defendants:** Sarang Kale, KDPL & Ors.	Challenged registered Sale Deeds dated **04/10/2007** and **14/10/2009**. Plaintiffs claim declaration of ownership and allege Defendant No. 18 holds title via an unprobated Will of Late Phulabai Shedge. Promoter states settlement negotiations are ongoing.	No Stay High Title Risk
Civil Misc. App. (CMA) 1263/2013	Civil Court / District Court, Pune	**Applicant:** Avinash Vasant Shedge **Opponents:** Hiraman Shedge & Ors.	Testamentary petition for grant of **Probate of the Will of Late Smt. Phulabai Shedge**. Interlinked with SCS 256/2013; determines lawful devolution of ancestral title in Bhugaon revenue survey numbers.	No Stay Med Title Risk
Regular Civil Suit 1324/2007	Civil Court Junior Division (CJJD), Pune	**Plaintiff:** Anusayabai Mokashi **Defendants:** Shedge family & Kale/KDPL	Suit for declaration & injunction. Plaintiff's share was purchased by developer and she filed withdrawal at Exh. 18 (17/03/2009). **However, Co-defendants 1(A)(a)-(e), 1(b), 1(c) filed an active Counter-Claim** contesting title that remains pending.	No Stay Active Counter-Claim
Regular Civil Suit 6801/2012	CJSD, Pune	**Plaintiffs:** Shaila V. Murkute & Ors. **Defendants:** Ramesh Shedge, Sarang Kale	Partition suit praying that sales deeds among defendants be declared non-binding. Title report notes this pertains to **Survey No. 97/16** of the township, not within the Sector R4 project boundaries.	No Stay Low (Off-Site)
Special Summary Suit 707/2022	CJSD, Pune	**Plaintiff:** Vishwas Vijay Bhise **Defendants:** KDPL & Ors.	Summary recovery suit for monetary claim. Relates to township survey numbers 135/3, 200, 215/2, 216/1 (outside Sector R4 boundaries).	No Stay Low (Monetary)

Project Survey Land Composition (76,868.70 Sq. Mtrs)

Survey Number	Area (Sq. M.)	Share of Project	Title / Dispute Vulnerability
Survey No. 140 (Part)	**42,958.00**	**55.88%**	**Vulnerable** Originates from Shedge family ancestral transactions (subject to SCS 256/2013 & RCS 1324/2007).
Survey No. 157 (Part)	**25,500.00**	**33.17%**	**Vulnerable** Major land parcel directly involved in Shedge family deeds and counter-claims.
137/1(1+2)(P), 138/1(P), 138/2, 138/4, 138/5	5,580.00	7.26%	**Moderate** Acquired via Conveyance Deeds (2016) and Mate/Shedge release deeds.
155/6(P), 156/6(P), 156/8(P), 159(P), 197/1(P)	2,830.70	3.69%	**Low** Minor access and peripheral parcels.

Key Geographic Finding: Survey Nos. 140 and 157 constitute **89.05% of the total project land**. If your prospective plot is located on Survey 140 or 157, you are directly exposed to the pending Shedge inheritance litigations.

4. INSTITUTIONAL MORTGAGE & ENCUMBRANCE AUDIT

CRITICAL FINANCIAL ENCUMBRANCE: The project land carries an active, registered institutional mortgage in favor of **Vistra ITCL (India) Limited**.

Mortgagee / Trustee	**Vistra ITCL (India) Limited** (Acting as Security Trustee / Debenture Trustee)
Principal Indenture	Registered Deed of Mortgage No. **11663/2018** dated **27/06/2018** (Sub-Registrar Mulshi, Paud)
Subsequent Charges	• Reg. No. **911/2020** (15/01/2020) • Reg. No. **6466/2020** (24/09/2020) • Reg. No. **15406/2020** (21/12/2020) • Reg. No. **10530/2021** (23/07/2021)
Legal Consequences	Vistra ITCL holds the senior first legal charge over the entire freehold property. **No individual plot can be conveyed free of encumbrance without a specific, signed NOC/Release Deed from Vistra ITCL.**

5. DRAFT AGREEMENT FOR SALE: TRAP CLAUSES & NEGOTIATION PLAYBOOK

Because the developer has not uploaded the statutory Proforma Agreement for Sale on MahaRERA, prospective buyers will receive the builder's private standard contract. Scrutinize and modify the following 7 critical clauses before signing:

Clause / Area	Builder's Standard Trap / Loophole	Mandatory Non-Negotiable Correction
1. Plot Area Variation	Permits builder $\pm 3\%$ to 5% deviation in plot boundary/area without price reduction, while charging extra if area expands.	Stipulate that any area variation beyond $\pm 1\%$ requires mutual consent and strict price recalculation at the **original contracted per-sq-ft rate**.
2. Specific Litigation Indemnity	Includes only generic boilerplate indemnity that does not cover past or ongoing disputes.	**Insert specific clause:** "Promoter agrees to indemnify and hold harmless the Allottee against all losses, damages, or costs arising out of **SCS 256/2013, CMA 1263/2013, and RCS 1324/2007**."
3. Mortgage Release / NOC	Vaguely promises that builder will obtain lender NOC "prior to execution of final Deed of Conveyance".	Demand that an **unconditional, plot-specific NOC from Vistra ITCL (India) Ltd** must be annexed directly to the registered Agreement for Sale.
4. Interest Rate Parity	Imposes 18% to 24% p.a. penal interest on buyer delays, but pays nominal compensation (or none) for builder delays.	Enforce **RERA Rule 18 Parity:** Both parties shall be governed by the exact same rate (**SBI Highest MCLR + 2%**, currently ~10.85% p.a.).
5. Cancellation & Forfeiture	Forfeits 10% to 20% of the entire plot value plus administrative fees if buyer defaults or seeks exit.	Under MahaRERA Model Agreement, forfeiture is capped at a maximum of **2% of the total consideration amount**, with balance refunded within 45 days.
6. Common Areas & Amenities	Classifies central clubhouses, access roads, and sports arenas as "Township Assets" owned permanently by developer.	Explicitly state that internal layout roads, open spaces, and Sector R4 common facilities shall be conveyed to the **Plot Owners' Society**.
7. Conveyance Deed Timeline	States conveyance will be executed "only after development of the entire 140-acre integrated township is completed".	Mandate plot conveyance to the buyer **simultaneously with final payment**, and common areas within 3 months of CC under Section 17.

6. STRATEGIC ACTION PLAN & BUYER CHECKLIST

> **RECOMMENDED VERIFICATION PROTOCOL:** Complete the following 5 verification steps with the promoter's legal desk prior to paying any token amount exceeding 10%:

1. **Identify Exact Plot Survey Number:** Request the layout demarcating your specific plot number. Check whether your plot falls in **Survey No. 140 or 157** (subject to Shedge suits) or in **Survey No. 138/4, 138/5, or 197/1** (cleaner title chain).
2. **Demand Lender Tripartite NOC:** Require the builder to provide a draft of the **No Objection Certificate (NOC) from Vistra ITCL (India) Limited** issued specifically in your name and citing your exact plot number.
3. **Verify Court Compromise Terms:** Ask the developer's legal team for certified copies of the **Order Sheets and filed Consent Terms** in *Special Civil Suit No. 256/2013* and *Regular Civil Suit No. 1324/2007* before the Pune Civil Court.
4. **Reject Non-Conforming Agreements:** Do not sign any Agreement for Sale that deviates from the **MahaRERA Model Form (Annexure A)**. Remind the sales team that under Section 13(2) of RERA, inconsistent builder clauses are legally void.
5. **Obtain Physical Boundary Demarcation:** Since the certifying advocate did not conduct a site survey, mandate that the developer's registered surveyor physically demarcate the boundary pegs of the plot in your presence before registration.
